

Prasun Chowdhury v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 February 2020 · Writ-C No. 6125 of 2020 (All.) · WRIT - C No. - 6125 of 2020 · **Writ disposed; EE to pass speaking final order; supply restored on ₹50,000 deposit; s.127 reserved.**

HEADNOTE

A consumer sought certiorari to quash a recovery certificate dated 15.6.2019 and a monthly electricity bill of ₹22,255, alleging coercive recovery without hearing and without following the U.P. Electricity Supply Code, 2005. The Division Bench did not decide those merits. It directed the petitioner to appear before the Executive Engineer with objections and evidence; the EE to pass a speaking and reasoned final order within four weeks; a short stay of coercive action; restoration of supply on deposit of ₹50,000; and liberty, if aggrieved by the final order, to appeal under section 127 of the Electricity Act, 2003. Failure to appear would automatically revive the recovery citation.

FACTUAL SUMMARY

Prasun Chowdhury approached the Allahabad High Court to quash a recovery certificate dated 15 June 2019 and a monthly electricity bill of ₹22,255 issued by the distribution licensee. He alleged that the respondents were taking coercive action without a hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department appeared. The Court noted those allegations and disposed of the writ on directions, without examining the merits of the recovery or the bill.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking final order by Executive Engineer; section 127 appeal reserved

HOLDING

Without quashing the recovery certificate or the monthly bill, the Court directed the consumer to appear before the Executive Engineer with objections and evidence; the EE to pass a speaking and reasoned final order within four weeks; coercive action stayed for seven weeks or until disposal of the objection, whichever earlier; supply to be restored on deposit of ₹50,000 within two weeks, with future charges payable as they fall due; liberty, if aggrieved by that final order, to appeal under section 127 of the Electricity Act, 2003; and automatic revival of the recovery citation if the consumer fails to appear. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections, the Court left it open, if the consumer was aggrieved by that order, to file an appeal under section 127 of the Electricity Act, 2003 in accordance with law, instead of deciding the recovery and bill on the writ. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal The Court required the Executive Engineer to pass a final speaking order on the objections and then reserved the consumer's section 127 appeal against that final order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 15.6.2019 AND THE MONTHLY BILL OF ₹22,255, AND WHETHER THE U.P. ELECTRICITY SUPPLY CODE, 2005 HAD BEEN FOLLOWED

The writ was disposed on directions without a merits grant or refusal. ¶ 1

